

PLEASE NOTE:

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SUBGRANT AGREEMENT

BETWEEN

Global Infrastructure Basel Foundation

Elisabethenstr. 28, 4051 Basel, Switzerland
("GIB")

and

NAME

Address

"Funds Recipient"

concerning: the participation of the Recipient in the project "Nature-based Solutions Innovation Accelerator (NBS-IA)".

This Subgrant Agreement ("the Agreement") is entered into by and between GLOBAL INFRASTRUCTURE BASEL FOUNDATION ("GIB") with its principal offices at Elisabethenstrasse 28, CH-4051 Basel, Switzerland, and **NAME, ADDRESS** ("Funds Recipient"). Where necessary for the purposes of this Agreement, GIB and Funds Recipient shall be referred to individually as "the Party" and collectively as the "Parties".

WHEREAS, GIB has been the recipient of a Grant ("Prime Grant") provided by the United Nations Environment Programme ("UNEP" or "Prime Funder"), an international inter-governmental organisation established by the General Assembly of the United Nations, represented by its Climate Change Division, for the implementation of the project "Nature-based Solutions Innovation Accelerator (NBS-IA)" ("the Project").

WHEREAS, the primary aim of the Project promoted by the Prime Grant is to provide funding to GIB and, through GIB, to selected implementing partners in order to promote the application of Nature-based Solutions (NbS) to strengthen infrastructure resilience, with a regional focus on Central Asia and Africa. The initiative aims to accelerate the adoption of NbS approaches for resilient, sustainable infrastructure development by providing grants (through call for proposals under the grant facility) and strategic support.

WHEREAS, Funds Recipient has been selected by GIB to serve as an implementing partner for the Project with eligible funding up to **a maximum of AMOUNT US Dollars (XXXX USD)** ("the Maximum Amount") for the implementation of the Project, in strict accordance with the terms and conditions outlined in the Implementation Plan annexed hereto ("the Implementation Plan", Annex A);

WHEREAS, Funds Recipient agrees to accept all terms and conditions of this Agreement, including any annexes hereto, the Prime Grant, as well as any amendments or subsequent directives communicated by GIB and in particular, albeit not exclusively, the stipulations relating to the use of the Subgrant and any disbursement and reporting procedures.

THEREFORE, in consideration of the covenants and agreements set forth herein, the Parties agree as follows:

1. **Amount and purpose of the Subgrant.**

- 1.1. Conditioned upon receipt of Prime Grant cash disbursements to GIB by Prime Funder, GIB shall make available to the Funds Recipient a grant ("Subgrant") of up to the Maximum Amount to be used exclusively for expenditures within the Implementation Plan.
- 1.2. The Subgrant is made available for the implementation of the Project, for the period from **DATE to DATE** (the "Term"). Only expenditures effected during this period and relating to activities carried out during this period may be financed from the Subgrant. The Term may be extended by mutual agreement of the Parties via an amendment to this Agreement signed by the Parties, which shall be conditioned upon the written approval of Prime Funder.

- 1.3. Funds Recipient shall use the Subgrant only for necessary and reasonable expenditures in accordance with good business practices. Funds Recipient undertakes to make reasonable use of the funds at its disposal, by adhering closely to the Implementation Plan. Under no circumstances may the Subgrant be used for any other objectives save for those expressly outlined in the Implementation Plan.

2. **Intellectual Property and acknowledgement**

- 2.1. **Pre-existing and background IP.** Each Party retains full ownership of any intellectual property it owned or developed independently prior to or outside of this Agreement ("Background IP"). Nothing in this Agreement transfers or assigns any rights in a Party's Background IP to the other Party.
- 2.2. **Project outputs.** Intellectual property created by the Funds Recipient in the course of implementing the Project ("Project Outputs") shall remain owned by the Funds Recipient. The Funds Recipient hereby grants GIB and the Prime Funder a perpetual, royalty-free, non-exclusive licence to use, reproduce, publish and share project outputs for any purpose related to the Project, the Prime Funder's programme, or GIB's institutional activities, provided that the authors are duly acknowledged.
- 2.3. **Acknowledgement obligation.** In any publication, report, study, communication or physical installation relating to the Project, the Funds Recipient shall acknowledge the support of GIB and the Prime Funder using the wording notified to it in writing by GIB. The Funds Recipient shall not deviate from the prescribed wording without GIB's prior written consent.
- 2.4. **Prior approval for any public mention.** Any public use of the name, logo or identifying marks of GIB or the Prime Funder, including but not limited to publications, press releases, social media, signage and physical installations, requires the prior written approval of GIB before publication or display. GIB will seek any further approval required from the Prime Funder on the Funds Recipient's behalf.

3. **Disbursement procedure and Project accounts**

- 3.1. The disbursement of the Subgrant shall follow the disbursement schedule annexed hereto (Annex 2: "Subgrant Disbursement Schedule"), which is aligned with the Prime Grant disbursement schedule included in the Prime Grant Agreement between Prime Funder and GIB. The total Subgrant will not be increased in the event of a budget overspend.
- 3.2. All payments under this Agreement shall be made in USD. Each Party shall bear the bank transfer fees charged by its own financial institution. Any costs arising from currency conversion and any loss resulting from exchange rate fluctuations shall be borne exclusively by the Funds Recipient.

- 3.3. Any disbursement shall be contingent upon the completion of the conditions, tasks, and/or associated with each tranche in the Subgrant Disbursement Schedule. If Funds Recipient does not complete the agreed-upon conditions, tasks, and/or deliverables within the agreed-upon schedule and to the satisfaction of GIB and the Prime Funder, GIB can suspend payments until the outstanding tasks are completed.
- 3.4. All disbursements to Funds Recipient will be contingent upon the prior receipt of funds by GIB from the Prime Funder. Funds Recipient understands that GIB cannot release or advance any funds before the disbursement of the remaining Prime Grant by the Prime Funder.
- 3.5. Funds Recipient agrees to keep separate, Project-specific accounts. Expenditure and costs disbursed under this Agreement must be easily identifiable and verifiable. Accounting data must be up-to-date and include original documentation for each Project-related expense. The accounts may be subject to an audit. Funds Recipient must permit GIB, the Prime Funder, and/or any certified public accountant commissioned by GIB to inspect the accounts and any other documents related to the purpose of this Agreement at any time.
- 3.6. Funds Recipient shall:
- a) keep for five years after submission of the final financial statement books, records and the originals of the supporting documents, clearly identifying all expenditures for the services and supplies for the Project and those services and supplies financed from the Subgrant;
 - b) document the transfer of ownership of those items which are destined for third parties and supply any information on the Project and its further progress which GIB or the Prime Funder may request;
 - c) of its own accord promptly inform GIB of any circumstances seriously affecting or jeopardising the accomplishment of the purpose of this Agreement or the implementation of the Project.

4. **Suspension of disbursements, termination and repayment.**

- 4.1. GIB shall be entitled to suspend disbursements if:
- a) Funds Recipient is not able to furnish evidence proving the use of the Subgrant for the purpose stipulated in this Agreement;
 - b) goods purchased by Funds Recipient for the Project and financed from the Subgrant are not used or cease to be used for the purpose of the Agreement;
 - c) Funds Recipient has violated any other obligation under this Agreement;

d) before conclusion of the Agreement or during its execution, Funds Recipient has given false information or withheld relevant information affecting the allocation or disbursement of the Subgrant;

e) Funds Recipient has violated the provisions on the prevention of corruption as stipulated in this Agreement; and/or

f) any extraordinary circumstances have arisen which preclude or seriously jeopardise the purpose of the Subgrant, the implementation of the Project, or the performance of the obligations assumed by Funds Recipient under this Agreement;

4.2. GIB shall be entitled to terminate the Agreement with immediate effect if any of the circumstances referred to in points d) to f) above arise. In case any of the circumstances referred to in points a) to c) arise, GIB shall be entitled to terminate the Agreement if these circumstances have not been remedied within a period to be stipulated by GIB, which shall, however, be not less than thirty (30) days.

4.3. GIB shall be entitled to demand immediate repayment of all or part of the Subgrant if any of the circumstances referred to in points a) to c), above, arise and have not been remedied within this period to be stipulated by GIB, or if the circumstances outlined in points d) or e) arise. Where point a) applies, only those amounts shall be repaid for which Funds Recipient is unable to furnish evidence of the use for the purpose stipulated in this Agreement. Where point b) applies, only those amounts relating to the goods concerned shall be repaid. Where point f) applies, only those amounts shall be repaid which have not been irrevocably committed by Funds Recipient for the purpose stipulated in this Agreement before the written notice of termination was received. Amounts are only deemed to be irrevocably committed if incurred for periods less than ninety (90) days after the receipt of the notice on termination but shall in any case not cover periods after the end of the contract period. The irrevocable commitment for the purpose stipulated in this Agreement has to be proven by Funds Recipient to GIB.

5. **Implementation of the Project.**

5.1. This Agreement, in association with the Implementation Plan and the Subgrant Disbursement Schedule constitute the binding framework for the implementation of the Project. Funds Recipient's role in the Project is laid down in the Implementation Plan.

5.2. Major changes to the above framework, or major changes to estimated expenditures, must be reported immediately to GIB. Such changes may be implemented only on the basis of revised planning and with the prior approval of GIB.

5.3. In addition to any formal reporting and communication requirements outlined in the Implementation Plan and the Subgrant Disbursement Schedule, Funds Recipient shall

keep in regular contact with GIB and submit informal interim progress reports to GIB upon request.

6. **Anti-corruption clause**

- 6.1. Funds Recipient shall ensure that the persons it entrusts with the preparation and implementation of the Project and the awarding of contracts for the provision of materials and services to be financed do not demand, accept, provide, grant, promise or accept promises for illegal payments or any other advantages in connection with these tasks. Funds Recipient shall ensure that all payments made under this Agreement will be used in compliance with all applicable laws, regulations, rules, and executive orders.
- 6.2. Funds Recipient must take appropriate steps to ensure that it enters into business and maintains such business relations only with such third parties that are reliable and to whom no statutory ban on entering into business applies.
- 6.3. Funds Recipient will inform GIB, promptly and of its own accord, of the occurrence of any breach of a provision of this Article. GIB's rights according to Article 6 remain unaffected, regarding payments or any other advantages in connection with these tasks.

7. **Data protection**

- 7.1. The Funds Recipient shall comply with all applicable data protection and privacy laws in connection with the performance of its obligations under this Agreement, including, where applicable, the requirements of the **Swiss Federal Act on Data Protection (FADP)** and any other relevant legislation.
- 7.2. To the extent that Funds Recipient processes personal data on behalf of GIB, Funds Recipient shall:
- a) process such personal data solely for the purposes of performing their obligations under the Agreement and in accordance with GIB's documented instructions;
 - b) implement appropriate technical and organisational measures to protect personal data against unauthorised or unlawful processing, loss, destruction, or damage;
 - c) ensure that any persons authorised to process personal data are subject to appropriate confidentiality obligations;
 - d) not disclose or transfer personal data to any third party without the prior written consent of GIB, unless required by law.

8. **Other provisions**

- 8.1. **Relationship of the Parties.** Funds Recipient acknowledges and agrees that Funds Recipient's relationship with GIB is intended to be one of subgrantee, and that nothing herein shall be construed as creating an employment or other relationship. Funds Recipient acknowledges and agrees that Funds Recipient will be solely responsible for reporting and paying all taxes, interest, currency exchange charges, and penalties on all payments made

under this Agreement and further agrees to indemnify and hold GIB harmless with respect to any such taxes, interest, or penalties that may be imposed. Funds Recipient understands and agrees that Funds Recipient is not entitled to any employment benefits GIB may provide to its employees, including without limitation, workers' compensation insurance, unemployment insurance benefits, disability benefits, group health insurance benefits, and pension and similar benefits.

8.2. Confidential Information. GIB and its parents, subsidiaries, predecessors, successors, and affiliates may provide and make available to Funds Recipient certain confidential and trade secret information regarding its business. Such Confidential Information is of substantial value and highly confidential, is not known to the general public, is the subject of reasonable efforts to maintain its secrecy, includes the professional and trade secrets, and is being provided and disclosed to Funds Recipient solely for use in connection with the Project and during the Term. In consideration of this Agreement, Funds Recipient agrees to hold in confidence and not to use or disclose any Confidential Information, except to the extent appropriate and necessary to fulfill Funds Recipient's duties and responsibilities to GIB, and to treat the Confidential Information as a trade secret belonging to GIB. Funds Recipient further agrees that Funds Recipient (a) will regard and preserve the Confidential Information as highly confidential; (b) will not disclose, nor permit to be disclosed, any of the Confidential Information to any person or entity except for purposes that benefit GIB, absent written advance consent and approval from GIB; (c) will not photocopy or duplicate, and will not permit any person to photocopy or duplicate, any of the Confidential Information without GIB's written consent and approval; (d) will not make any use of Confidential Information for Funds Recipient's own benefit or the benefit of any person or entity other than GIB; and (e) will return all Confidential Information to GIB within twenty-four (24) hours of a request to return it to GIB or five (5) working days of the termination this Agreement, whichever is sooner.

8.3. Indemnification. Funds Recipient hereby agrees to indemnify, defend, and hold GIB harmless from and against any and all claims, liability, loss, cost, damage or expense (including attorneys' fees and costs) (collectively "Losses") arising from or in any matter connected with Funds Recipient's performance of its obligations under this Agreement, except to the extent that such Losses result from GIB's willful acts or omissions.

8.4. Representations and warranties of Funds Recipient. Funds Recipient represents and warrants that:

- a) it has the full right, power and authority to enter into this Agreement and to perform its obligations hereunder;
- b) it possesses, and will maintain throughout the term of this Agreement, all qualifications, licences, permits, authorisations, and professional competencies necessary to perform the Services in accordance with applicable laws and professional standards;
- c) the performance of the Funds Recipient's obligations under this Agreement will comply with all applicable laws, regulations, and professional obligations in the relevant jurisdictions;

- d) entering into and performing this Agreement does not and will not conflict with any other agreement or obligation binding upon the Funds Recipient;
- e) the Services will be performed with due care, skill, and diligence consistent with generally accepted professional standards.

8.5. **Injunctive relief.** Because Funds Recipient's breach of this Agreement may cause GIB irreparable harm for which money is inadequate compensation, Funds Recipient agrees that GIB will be entitled to injunctive relief to enforce this Agreement, in addition to damages and other available remedies.

9. **Final provisions**

9.1. In the event of a provision of this Agreement being invalid, this shall not affect the validity of the remaining provisions. Any deficiency in consequence thereof shall be remedied by a provision consistent with the purpose and intent of this Agreement.

9.2. Funds Recipient shall not assign or transfer any rights under this Agreement unless with the express written consent of GIB.

9.3. This Agreement shall be governed by the laws of Switzerland.

9.4. This Agreement may be executed in counterparts and by electronic signature. Electronic signatures, including those applied through recognised electronic signature platforms, shall be deemed equivalent to handwritten signatures and shall be legally binding on the Parties.

9.5. No amendment, modification, or waiver of any provision of this Agreement shall be valid unless made in writing and signed by the authorised representatives of both Parties, either by handwritten signature or by electronic signature.

IN WITNESS THEREOF, the Parties have executed this Agreement as of the date of signature.

(SIGNATURES CONTINUE ON THE NEXT PAGE) (if appropriate)

For GIB	For the Funds Recipient
Basel,	
Louis Downing, CEO	
Basel,	

Lorena Zemp, COO	
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